

Court No. - 21

Case :- WRIT - C No. - 39029 of 2022

Petitioner :- Ganeshapal Giri

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Brahma Kumar Tiwari

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Sri Alok Mishra, learned counsel appearing on behalf of respondents 3 and 4 seeks time to obtain instructions as to whether any final assessment order has been passed in the matter or not.

List as fresh on 13.1.2023.

Order Date:- 6.1.2023

CS/-

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

The instant petition has been filed challenging the so called notice dated 19.9.2022 issued by respondent no.4. In fact, it is not a notice, but an order disposing of the representation of the petitioner in compliance of the order of this Court dated 25.6.2022 in Writ-C No.10151 of 2022, whereby the petitioner was granted liberty to file objection in terms of Para 6.5 of the U.P. Electricity Supply Code, 2005 and the respondent Electricity Department was directed to decide the same.

In pursuance of our previous order, learned counsel for the Electricity Department has placed on record for our perusal a copy of final assessment order dated 9.12.2020 wherein it is noted that the petitioner had not filed any objection against the provisional assessment dated 26.10.2020 and consequently, the same is treated to be final.

The petitioner has remedy to challenge the final assessment order by filing appeal under Section 127 of the Electricity Act, 2003. Moreover, the representation has been rejected by not accepting the plea that there was letting out of the premises in absence of any registered lease agreement being brought on record.

On query made from learned counsel for the petitioner as to whether there is any other evidence relating to creation of lease except the photo copy of the agreement (unregistered), he admits that no such evidence has been filed.

In the facts and circumstances aforesaid, we decline to examine the issue in exercise of writ jurisdiction and leave it open to the petitioner to avail the statutory remedy of appeal.

The petition stands disposed of accordingly.

(Ajit Singh, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.1.2023

SL